Mobitel (Pvt) Ltd

Document No. HR 0031

Policy and Procedures on Sexual Harassment

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..... 3/9/2013

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Implementation: 01/08/2013
Distribution: All Staff
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DOCUMENT CONTROL SHEET

Contact for Enquires and Proposed Changes

If you have any questions regarding this document contact:

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Record of Issues

Issue No	Issue Date	Nature of Amendment

1. Purpose

This policy provides guidance to promote prompt reporting of sexual harassment allegations and to ensure corrective measures are been taken to create a safe and a pleasant environment for staff at all levels in the organization.

2. Scope

This policy applies to all staff members who are on regular and fixed term contract basis at Mobitel.

3. Sexual Harassment at Work Place

Unwanted conduct of a sexual nature, which either the rejection or imposition of can have negative employment consequences for the victim, as well as undesirable effects on the work environment.

4. Effects of Sexual Harassment

On Victim :

Include fear, Trauma, Feeling of Being Degraded, loss of confidence, de-motivation, anger, loss of concentration and drop in productivity or a threat to one's self-esteem.

On Employer :

Sexual harassment does not only affect the individuals who are directly involved, it is also a management issue. The individual who experience harassment often look for ways to avoid interaction with their harasser/s, or to avoid the workplace entirely. It affects staff morale and creates an unsafe environment, high level of absenteeism and employee turnover. It ultimately affects the staff member's and the company's productivity.

5. Types of Sexual Harassment

Sexual harassment does not always involve men harassing women. As long as the harassment is sexual in nature, it can also involve a man harassing another man, a woman another woman or even a woman superior harassing a male subordinate.

The following allegations can be considered as Sexual Harassment at Mobitel.

I. Physical

- Hugging, Kissing, brushing against body, obstructing/cornering etc..,
- Unnecessary/ Inappropriate touching, pinching, patting etc..,
- Indecent exposure
- Actual sexual assault- molestation, rape

II. Verbal

- Requests or demands for sexual favours
- Suggestive Remarks
- Degrading abuse or insult with a sexual overtone
- Jokes or tricks of a sexual nature

III. Non – Verbal

- Leering/ Ogling, with suggestive overtone
- Licking Lips/holding or eating food provocatively
- Sign language, hand signals indicating sexual activity

IV. Visual

- Displaying pornographic material at the workplace

V. Psychological

- Repeated unwanted social invitations, persistent flirting, relentless proposals for dates etc…

6. General Principles

- All staff members, regardless of their position, are covered by and are expected to comply with this policy, and to take appropriate measures to ensure that prohibited conduct does not occur.

- Appropriate disciplinary measures will be taken against any employee who violates this policy based upon the seriousness of the offense.

- If the conduct is unwelcoming or unwanted, it may be treated as harassment even if the affected staff member does not resist, or participates against his or her will.

- An effective complaint mechanism will be implemented and all staff are strictly advised to adhere to it.

7. Sexual Harassment Complaint Mechanism

The following complaint procedure will be followed in order to address complaints regarding sexual harassment.

1) Staff member who feels harassed may initiate the complaint process by submitting a written and signed complaint to the respective Line Manager/ GM/ SGM or directly to the HR Division.

   No formal action will be taken by the Human Resources division, against any person under this policy, unless a written and a signed complaint is on file, containing sufficient details to allow the authorized officer to determine if the policy may have been violated.

   In case if a Line Manager/ GM/ SGM becomes aware that harassment is occurring either from **personal observation** or as a result of a **staff member coming forward**, should immediately take appropriate steps to mitigate situation and report to HR through harassment process.

2) HR will review the complaint and will initiate the investigation within five (05) working days of receiving the complaint, to determine whether there is an alleged violation of this Policy.

3) During the investigation, HR will interview the complainant (victim), the respondent (s)/the person (s) charged, and any witnesses, to determine whether the reported conduct occurred.

4) Within fifteen (15) working days of the complaint being reported to HR the person conducting the investigation from HR or the external party (through Inquiring Officer) will conclude the investigation and submit a report with his or her findings to Senior General Manager-HR.

5) If the findings determine that the harassment is in violation of the company's policy, the Senior General Manager – Human Resources will recommend appropriate disciplinary action to be taken by the company.

6) Within five (5) working days after the investigation is concluded, HR will meet with the complainant (victim) and the respondent (charged) separately, in order to notify them in person of the findings of the investigation and to inform them of the action being recommended by the Senior General Manager –Human Resources.

7) The complainant and the respondent could submit appeals to the Senior General Manager–Human Resources challenging the findings if required. Any such appeals must be submitted no later than three (3) working days after the meeting with HR, in which the findings of the investigation is discussed.

8) Appeals could be discussed with the Senior Management staff as may be appropriate and decide what action (if any) to be taken. The company's decision will be communicated through HR, in writing and will include finding of fact and a statement for or against disciplinary action. If disciplinary action is to be taken, the appropriate disciplinary measure will be stated.

9) If the investigation is inconclusive or it is determined that there has been no harassment or violation of this Policy, but some potentially problematic conduct is revealed, preventative action may be taken or recommend counseling.

8. Counselling and Support

Staff members who wish to avail counselling support could seek assistance from the Employee Counsellor appointed by Mobitel.

Counselling can support victims of Sexual Harassment by –

- Advising victims
- Guidance on the complaint process
- Resolving complaints

9. Disciplinary Measures

- Range of measures from Verbal Warnings to Dismissal (related to the seriousness of the behaviour)
- Specific Disciplinary Measures
  Explanation to the required forum /Apology

10. Contact List

Contact	Name	Phone
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